

26, 2026. At both prior hearings, Petitioner was advised that the Court required the original Certificate of Publication. Despite two continuances the original Certificate of Publication still has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: JOHNSTON

CASE NUMBER: 25CV-0209354

Tentative Ruling on Petition for Change of Name: Petitioner Annette Brandi Nielsen aka Annette Brandi Johnston aka Brandi Annette Neilsen Johnston seeks to change her name to Brandi Annette Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0206995

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Zachary Jones filed this Song-Beverly Consumer Warranty Act case on February 5, 2025, alleging that his 2021 Chevrolet Silverado was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled on August 19, 2025, through a written settlement agreement that expressly preserved Plaintiffs' right to seek fees and costs as the prevailing party under Cal. Civ. Code § 1794(d).

Plaintiffs seek attorney fees of \$28,256.25 (lodestar of 18,837.50 and 0.5 multiplier adding 9,418) and costs totaling \$1,228.77 for a total award of \$29,485.02. GM does not dispute that Plaintiffs are entitled to fees and costs. GM argues that: 1) hourly rates are excessive, 2) unreasonable hours should be stricken, 3) estimated fees should be stricken, and 4) no lodestar multiplier is warranted.

Untimely Opposition: CCP § 1005(b) provides that all opposition papers shall be filed with the court and a copy served on each party at least nine court days before the hearing. Defendant's Opposition was filed with the court only six court days before the hearing. (June 19, 2026, is a holiday.) Plaintiff's Reply does not object to the Court considering the late filing.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.